

22STCV36609 22STCV36609

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-08-12

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Case Number: 22STCV36609 Hearing Date: August 12, 2026 Dept: 300

Case Name: 828

Media Capital, LLC, et al. vs. David Raymond Brown, et al.

Case Number: 22STCV36609

OSC Date: August

12, 2026

MOTION FOR DEFAULT JUDGMENT

Background:

This action arises from an agreement for the financing of films.

Plaintiffs allege that they provided Defendants with over \$2 million to make two movies and that they never got their money back.

On November 18, 2024, Plaintiffs 828 Media Capital, LLC, 828 Production, LLC, and Todd Lundbohm (collectively, Plaintiffs) filed this action against Defendants David Raymond Brown, Julian Raymond and various business entities (collectively, Defendants) asserting causes of action for: (1)-(2) Breach of Contract; (3) Breach of Fiduciary Duty, (4) Aiding and Abetting, (5) Fraud, (6) Conversion, (7) Replevin, and (8) Judicial Foreclosure.

On February 22, 2023, Defendants David and Julian filed their joint Answer.

On November 9, 2023, the defaults of Defendants Nightmares, Undertaker, Specter, Clear Horizon, Clear Entertainment, Clear Distribution, and JTRB were

entered.

On July 3, 2024, the Court granted Plaintiffs' motion for terminating sanctions against David Raymond Brown and Julian Raymond.

On September 18, 2025, the Court denied Defendants' motion to set aside defaults.

Submitted: The requirements of CRC Rule 3.1800 have not been met.

Principal Requested:
\$2,686,602.28

Interest: \$3,511,451.20

Attorney Fees: \$354,916.65

Costs: \$17,463.02

Total \$6,570,433.15

Conclusion:

Plaintiffs request for attorneys' fees in the amount of \$354,916.65 is improper.

Under Local Rule of Court, rule 3.214(a) this request is improper. "If fees are awarded on default, they shall be determined in accordance with Local Rule 3.214." (Local Rule 3.207.) Under Local Rule 3.214, "[w]hen a promissory note, contract, or statute provides for the recovery of reasonable attorneys' fees, the following schedule will apply to the amount of the new judgment unless otherwise determined by the court[:]

Default case:

\$0.01 to \$1,000, 15% with a minimum of \$75.00;

\$1,000.01 to \$10,000, \$150 plus 6% of the excess over \$1,000;

\$10,000.01 to \$50,000, \$690 plus 3% of the excess over \$10,000;

\$50,000.01 to \$100,000, \$1,890 plus 2% of the excess over \$50,000;

Over \$100,000, \$2,890 plus 1% of the excess over \$100,000.”

(Local Rule 3.214.)

Accordingly, the request for default judgment is DENIED.

Counsel is to cure the defects and submit a new default judgment package fifteen (15) days prior to the next hearing date.

Order to Show Cause Re: Default Judgment is continued to October 2, 2026 at 08:30 AM in Department 300 at Stanley Mosk Courthouse.